

**U.S. Department of Justice
Executive Office for Immigration Review**

**Justification and Approval Limited Competition for
Acquisitions Under the Simplified Acquisition Threshold**

1. In accordance with Federal Acquisition Regulation (FAR) 13.106-1(b)(1), I hereby determine that the required parking spaces at the at New York Immigration Court 26 Federal Plaza, 12th Floor, Room 1237 New York, NY 10278 , as listed on JPQ 15JE1R-25-PR-0074 is available only from KIDS PARKING to provide 7 parking spaces with 24/7, 365 days a year access. Based on market research, there is three one other parking garage within a .1 mile radius of the New York Immigration Court and is not considered a reasonable walking distance from the court because of safety concerns.
2. Market Research indicates KIDS PARKING is the only company/agent of the property owner capable of providing the required parking spaces within close proximity of the court.
3. This acquisition is restricted to the following vendor:

Contractor Name: KIDS Parking
KIDS PARKING CORP.
545 FIFTH AVENUE 545
SUITE 600
NEW YORK, NY 100017-3609
DUNS: 621851448
Contractor POC Name and Contact: Claudia Taborga 212-490-3460x12
4. The price for the required parking spaces at the New York Immigration Court is estimated at \$63,000, which is based on a previous contract. The previous contract expires on 3/25/2025. The period of performance shall be for 12 months --- March 26, 2025 through March 25, 2026 plus 2 option years.
5. FAR 6.302-1(a)(2) - Only one responsible source and no other supplies or services will satisfy agency requirements. "When the supplies or services required by the agency are available from only one responsible source, or, for DoD, NASA, and the Coast Guard, from only one or a limited number of responsible sources, and no other type of supplies or services will satisfy agency requirements, full and open competition will not need to be provided for."

Efforts to Obtain Competition: Market research was conducted to seek sources capable of providing the required parking. No other parking facility was available in close proximity to the New York Immigration Court. According to a comparison of monthly parking available in the Federal Plaza area conducted using the internet site Spot Hero dated 3/14/2025,

1. 101 Worth Street - Foley Square Garage – Jersey City offered parking at \$800.00/space 0.1 miles from court.
2. 95 Worth Street - Select Garages offered parking at \$745/space. 0.1 miles from

court.

3. 88 Leonard St. – Garage offered parking at \$899.00/space. 0.2 miles from court.
4. Actions to Increase Competition: SFMS continually works to seek compatible providers. At this time, the parking facility managed by KIDS PARKING is the only provider that meets the agency requirements, specifically the distance requirements from the parking facility to the court location. The non-reserved parking permit will ensure the safety of Immigration Judge working extended or unusual shifts that would have them coming/going to work at off-times in the dark. The permits will ensure that these employees will not have to walk to and from their vehicles in the dark in New York, NY which would expose them unnecessarily to potential harm.

5. Market Research:

As stated above, the agency conducted market research and determined the following results:

There is only one other parking garage within a 0.1 mile radius of the New York Immigration Court and is not considered a reasonable walking distance from the court. The non-reserved parking permit will ensure the safety of Immigration Judges working extended or unusual shifts that would have them coming/going to work at off-times in the dark. The permits will ensure these employees will not have to walk to and from their vehicles in the dark which would possibly expose them unnecessarily to potential harm.

As for a pricing comparison, see below:

101 Worth St. – Foley Square Garages	\$800.00 per space
95 Worth St - Select Garage	\$745.00 per space
88 Leonard St. – Garage	\$899.00 per space

**Comparison of Mthly Parking/Space for Federal Plaza Area*

*** Source: Spot Hero ---- Internet Search dated 3/14/2025*

Based on the information above, it is determined that KIDS PARKING is the only source capable of providing the required parking facility within the distance requirements from the New York Immigration Court location.

Reviewed/Approved:

Program Official

Date

Contracting Officer

Date

